ARIZA v LAKESIDE VENTURES, LLC, et al

22CV46059

PLAINTIFF'S MOTION FOR RECONSIDERATION

This matter involves a lengthy and ongoing dispute over the sale of a mobile home estate located at 1475 Railroad Flat Road, Mokelumne Hill, CA ("Mobile Home Estate.")

On April 24, 2026, the Court granted a motion for terminating sanctions filed by Lakeside Ventures, LLC and Bonnie K. Tuckerman-Aho (Hurley) ("Defendants.") At the same time, the Court denied Plaintiff's motion for relief from an earlier order imposing sanctions against her related to an expert deposition.

Now before the Court is Plaintiff's motion for reconsideration pursuant to Code Civil Procedure section 1008.

Code of Civil Procedure section 1008(a) provides, in relevant part:

> (a) When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.

Section 1008(e) provides further that "no application to reconsider any order or for the renewal of a previous motion may be considered by any judge or court unless made according to this section."

In applying this subdivision, Courts require the moving party to first demonstrate that there are grounds for reconsideration because of new or different facts, circumstances or evidence. (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212.) Second, the moving party must "provide a satisfactory explanation for the failure to produce the evidence at an earlier time." (*Ibid*.)

As she has repeatedly argued throughout this case, Plaintiff reiterates her position that the Defendants unlawfully allowed her to pay for a property they never intended to sell her because of alleged fraud or deceit. However, the motion is devoid of any new facts, circumstances and evidence that would require the court to reconsider the order granting terminating sanctions. While Plaintiff presents evidence that she was ill and confused on the hearing date, this is insufficient to meet the burden established by Code Civil Procedure section 1008.

Accordingly, Plaintiff's motion for reconsideration is **DENIED**.

Additionally the Court notes that CCP Section 1008 (d) provides that any violation of this section – such as filing a motion for reconsideration without any supporting new facts or law, including a declaration detailing how and why these facts or law could not have been determined before the prior hearing – may be punished as contempt and with sanctions as allowed by CCP Section 128.7. However, noting the ruling in question terminated plaintiff's case and exposes her to provable damages pursuant to the cross-complaint, the Court finds in the interests of justice and equity that no further sanctions should be assessed.

The Court will proceed with the scheduled Default Hearing on damages related to the cross-complaint.

The clerk shall provide notice of this ruling to the parties forthwith. Defendants to submit formal Orders complying with Rule 3.1312 in conformity with this Ruling.

SANCHEZ, et al v SIMPSON, JR, et al

22CV46351

PLAINTIFF'S MOTION TO STRIKE OR TAX COSTS

This matter involves a real property dispute between Antone Sanchez, Carol Sanchez, and Linda Andrus ("Plaintiffs") and Russel Simpson, Jr., Stacy Simpson, and Placer Title Company, Inc. ("Defendants.") The matter went to arbitration on February 20, 2026, and the arbitrator decided in favor of Defendants. The Court entered judgment in accordance with the arbitration award on March 23, 2026.

Now before the Court is Plaintiffs' motion to strike or tax costs. Plaintiffs seek the following reductions:

- One filing fee in the amount of $435.00 instead of $930.00
- Reduction of deposition and travel costs from $8,892.60 to a maximum of $1,000.00
- $49.78 in electronic filing fees

The motion is opposed.

I. Legal Standard

Code of Civil Procedure section 1032(b) provides that a prevailing party is entitled to recover costs as a matter of right. Section 1033.5 itemizes costs that are recoverable and subsection (c) specifies that costs must be reasonably necessary to the conduct of litigation, rather than merely convenient or beneficial to its preparation, and the costs must be reasonable in amount.

"If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs." (*Ladas v. California State Auto Assn.* (1993) 19 Cal.App.4th 761, 774.)

II. Discussion

Defendants initially oppose the Plaintiffs' motion on the grounds that it is not timely. California Rule of Court section 3.1700(b)(1) requires that a motion to tax costs be filed within 15 days of service of the cost bill. Defendants filed their memorandum of costs on March 18, 2026, and served the statement on Plaintiffs' counsel via regular U.S. mail.